



Volt Managed Investment Trusts – HMC Energy Transition Platform

MN-90007

Phase 1 Determination

Acquisition may be put into effect

05 June 2026

1. Determination and statement of reasons

Notified acquisition	Volt Managed Investment Trust 1 and Volt Managed Investment Trust 2 (together, the Volt MITs), through their respective trustees, propose to invest \$355 million (AUD) in HMC Capital Limited's Energy Transition Platform (HMC Platform) through the acquisition of loan notes and share warrants issued by Volt HoldCo Pty Ltd (Volt HoldCo) (the Acquisition), with the warrants automatically converting into a minority equity interest in Volt HoldCo upon repayment of the loan notes.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirers, the Volt MITs, are administered by professional trust companies, namely Perpetual Corporate Trust Limited, and The Trust Company (Australia) Limited, respectively (together, the Perpetual Trustees). The single unitholders in the Volt MITs are KKR Global Climate Transition Holdings Pte. Ltd and KKR Asia Climate Holdings Pte. Ltd respectively (the KKR Funds). The Volt MITs are ultimately wholly owned by investment funds, vehicles and/or accounts advised and managed by various indirect subsidiaries of KKR & Co. Inc. (together with its direct and indirect subsidiaries, KKR). KKR is a global investment firm that offers alternative asset management as well as capital markets and insurance solutions. The target, HMC Platform, operates energy generation and storage assets and has a development pipeline of wind and energy storage projects in Victoria. HMC Platform comprises wholly owned subsidiaries of Volt HoldCo Pty Ltd, which is itself a subsidiary of HMC Capital Limited (HMC). HMC is an ASX-listed alternative asset manager.
Overlap and relationship between the parties	KKR and the HMC Platform (together, the Parties) both operate within the electricity generation supply chain. The Parties horizontally overlap in the operation of electricity generating and storage assets in National Electricity Market (NEM). Some of HMC Platform's assets and pipeline projects are, or will be, connected to transmission infrastructure in which KKR has an indirect and minority interest. In addition, KKR, via a managed investment fund, has an indirect minority interest in Transgrid and Victoria Power Network. One of the HMC Platform's Victorian assets is connected to a Victoria Power Network distribution network, and three of HMC Platform's pipeline projects in NSW will be connected to Transgrid's transmission network upon completion.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have

	regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, market share data from prior matters and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The Parties' post-Acquisition share in the generation and storage of electricity in the NEM is minimal, and the merged entity would continue to be constrained by alternative operators of electricity generation and storage assets in the NEM. • KKR would be unlikely to have an ability to favour the HMC Platform's assets post-Acquisition given its indirect minority interest would not give it control or influence over the relevant network businesses.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act